Information Sharing Agreement

Rescue and Response project Purpose Specific Information Sharing Agreement

Owner: Rescue and Response project, Brent Council

Review Date: October 2019

This Information Sharing Agreement (ISA) defines the arrangements for processing data between disclosing data controllers and recipient data controllers and sits underneath the overarching Information Sharing Protocol (ISP) / Partnership Agreement.

Definitions of terms used in this agreement shall have the same meaning as defined under the Data Protection Act 2018 (DPA).

1. Parties to the agreement:

Full name and address of the organisations or businesses (distinguish between disclosing organisation and recipient organisation)

Disclosing organisation	**Recipient organisation**
Brent Council- Rescue and Response project	Brent Council- Rescue and Response project
Abianda	Abianda
St Giles Trust	St Giles Trust
Safer London	Safer London
All London Boroughs	All London Boroughs
NPS	NPS
CRC	CRC
The Children Society	The Children Society

2. Why is the information being shared?

Rescue and Response is a three-year MOPAC (Mayor's Office for Policing and Crime) funded project, running between 2019 and 2021, which will support young Londoners affected by cross-border county lines activity.

The signatories to this ISA has responsibilities to share information under legislation, which includes preventing and detecting crime and/or safeguarding and supporting individuals.

The sharing of information is necessary for the Rescue and Response project to develop and deliver a support service for young people who are vulnerable and caught up in county lines drug distribution networks across London, and identify and use enforcement against those exploiting young people. This will benefit the public and community by reducing crime and improving the potential outcomes of young people.

Everyone who works with children has a responsibility for keeping them safe. No single practitioner or agency can have a full picture of a child's needs and circumstances and, if children and families are to receive the right help at the

right time, everyone who comes into contact with them has a role to play in identifying concerns, sharing information and taking prompt action.

Sharing information is relevant for

- Addressing the increase in number of Young people identified as being exploited/at risk of count lines exploitation
- Increased engagement with services for the young people referred and engaged.
- Better understanding of County Lines and peer and criminal networks associated.
- Increased feelings of safety and reduced feelings of vulnerability of those young people engaged through the project.
- Identification of a person's associations to ascertain if they are linked to/at risk from a criminal network
- Identification of a person's aliases to clarify if they are linked to/at risk from a criminal network
- Identification of a criminal network's to identify young people that may be at risk from their criminal activity
- The prevention of crime and disorder
- The detection of Crime
- The protection of vulnerable members of the community

3. **Potential recipients, types of recipients and the circumstances they will have access** (if information is shared further)?

Disclosing organisations will share with other signatory boroughs and police any relevant information regarding the young person on a need to know basis. This will include intelligence to prevent further crimes and to safeguard children and young people.

The main information sharing will take place between signatory agencies, with the Rescue & Response Project Team acting as the hub, and delivering support services. The hub will be a central control for sharing information about individuals. It will manage the sharing of information as referrals from and to other signatories.

Disclosing organisations may share with other internal and external departments so the organisation can provide a more holistic service for their benefit. This will be under existing sharing frameworks within each organisation as data controllers.

4. **What information being shared?**

Personal and special category personal data will be processed. The data items include:

- criminal data
- health data (mental health)
- financial data (mainly benefits),
- contact data
- family data
- local authority service data (education, children safeguarding, adult safeguarding).

The data subjects will be victims/potential victims and alleged/convicted perpetrators, as well as individuals who are connected to those data subjects, such as family, witnesses and providers of support. The relationships or identity (i.e. victim or perpetrator) will be defined and flagged during processing.

5. **What is the classification of the information to be shared according to the Government Security Classification Policy (GSCP)? The handling and access of the data shall comply with the requirements of this classification.**

Data will be classified as OFFICIAL

A subset of data will be classified as OFFICIAL - SENSITIVE. This will be relevant for information that could have more damaging consequences for individuals if it were lost, stolen or published in the media. This subset of information shall still be managed within the 'OFFICIAL' classification tier, but attract additional measures (generally procedural or personnel) to reinforce the 'need to know'. In such cases where there is a clear and justifiable requirement to reinforce the 'need to know', information assets will be conspicuously marked:

This will be relevant for the following subset of data items:

- criminal data
- health data (mental health), and
- local authority service data (education, children safeguarding, adult safeguarding).

Please see appendix A- data sharing flow chart and data table.

Parties may have implemented the GSCP differently and each is responsible for applying their classification schemes appropriately.

6. **What is your legal justification for sharing? Has consent been gained if required?**

The lawful basis conditions under GDPR will be Article 6 (c) legal obligation and (e) public task, therefore (a) consent is not required. Furthermore, where

we are processing special category data, this will be under GDPR Article 9 (g) and (h).

GDPR Article 6		GDPR Article 9	
1(a) Consent	☐	2(a) Explicit consent	☐
1(a) Necessary for the performance of a contract to which the data subject is or about to be party	☐	2(b) Necessary in connection with employment	☐
1(c) Necessary for compliance with legal obligation	☒	2(c) Necessary to protect the vital interests of the data subject	☐
1(d) Necessary to protect the vital interests of the data subject	☐	2(d) Legitimate interest	☐
1(e) Necessary for performance of a task carried out in public interest or in exercise of official authority	☒	2(e) The data subject has manifestly made the information public	☐
1(f) Legitimate interest (does not apply for public authorities)	☐	2(f) Necessary for establishment, exercise or defence of legal claims	☐
		2(g) Necessary for reasons of substantial public interest	☒
		2(h) Necessary for provision of health and/or social care, including preventative or occupational medicine	☐
		2(i) Necessary for reasons of public interest in the area of public health	☐
		2(j) Necessary for archiving purposes in the public interest, scientific or historical research purposes.	☐

How will the common law duty of confidentiality be satisfied?[1]			
Consent	☐	Legal obligation	☒
Public interest	☐	Other	☐

Rationale

The key pieces of legislation and statutory duties applicable to the processing and sharing are below.

Legislation:

- **Children Act 1989 2004? – relevant sections include s.11 and section 16**

Under the Children Act 1989, local authorities are required to provide services for children in need for the purposes of safeguarding and promoting their welfare.

[1] The common law duty of confidentiality is separate from and in addition to data protection legislation (DPA, GDPR). It requires that information given in confidence must not be shared with a third party without the individuals' valid consent or some other legal basis such as overriding public interest, statutory basis or court order. Under common law, consent may be implied by virtue of the individual freely giving the information, where it has been made clear to them how their information will be used and who it will be disclosed to. The purpose of sharing and any recipient(s) must be reasonably expected from the individual and the confidentiality of their information otherwise maintained.

- **Care Act 2014 – relevant sections include s.1 and s.6**

The R&R Project will also cover young people aged up to 25 years. The Care Act allows the sharing of adult information with care and support needs to keep them safe from abuse and neglect. It is aimed at people with care and support needs who may be in vulnerable circumstances and at risk of abuse or neglect. In these cases, local services must work together to spot those at risk and take steps to protect them. The Act aims to create a legal framework so key organisations and individuals with responsibility for Adult Safeguarding can agree on how they must work together and what roles they must play to keep adults at risk safe.

There are additional duties in the Care and Support Statutory Guidance 2018, which sits beneath Care Act.

- **Anti-Social Behaviour, Crime and Policing Act 2014 – relevant sections include those under Part 4, Part 5 and Part 9**

This Act provides a framework to address criminal activity which falls under anti-social behaviour to provide better protection for victims and communities.

- **Crime & Disorder Act 1998– relevant sections include s.115**

The Act makes provision for preventing crime and disorder, this gives power to disclose information to specified relevant authorities where the disclosure is necessary or expedient for the purposes of the Act.

Statutory guidance:

- **Pan London Child and Adult Protection Procedures**

Provide statutory duties which allow organisations to process and share information to better safeguard vulnerable adults and children through a multi-agency approach.

- **Working Together to Safeguard Children 2018**

This is statutory guidance that allows the sharing of adult data for the benefit of the child as well as the sharing of children's data. It states that local authorities, working with partner organisations and agencies, have specific duties to safeguard and promote the welfare of all children in their area. Children may be vulnerable to neglect and abuse or exploitation from within their family and from individuals they come across in their day-to-day lives. These threats can take a variety of different forms, including: sexual, physical and emotional abuse; neglect; exploitation by criminal gangs and organised crime groups; trafficking; online abuse; sexual exploitation and the influences of extremism leading to radicalisation. Whatever the form of abuse or neglect, practitioners should put the needs of children first when determining what action to take.

The actual disclosure/sharing of any personal data under this ISA must be conducted within the framework of other relevant legislation and guidance including:

- General Data Protection Regulation 2016
- Data Protection Act 2018
- Human Rights Act 1998
- Common Law Duty of Confidentiality
- Caldicott Principles
- The Freedom of Information Act 2000

7. How will privacy notices be facilitated? – for organisation that collects data

Parties are responsible for providing suitable information that describes the processing and an individual's rights, where it is considered appropriate under the legislation that they do so.

A common layered privacy notice/statement which provides a suitable language for this purpose shall be available to all parties.

8. How will data quality be assured? – accuracy (periodic sampling), relevance and usability (notifying corrections)

Data controller(s) that have identified data issues have a duty to inform the other data controllers.

9. Compatible data sets – how particular data items – (e.g. DOB) should be recorded and how can information belonging to data controllers be distinguished?

Each disclosing organisations name will be included in data sharing transfer. Each data item will be labelled with the source of the data.

10. How will the information be shared? (e.g. data transfer - include any security measures)

The Project will share information via a secure email network or egress. The secure network is to be compliant with either PSN or NHS DSP standards. E-CINs secure case management system is used for case management updates.

11. How will the information be stored? (e.g. secure server - include any security measures)

Each party is required to comply with the Public Services Network (PSN) code of connection for storing official- sensitive information.

It is the responsibility of each party to ensure that they have appropriate technical and organisational security measures in place to guard against unauthorised or unlawful processing of personal data and against accidental loss or destruction of, or damage to, personal data.

All data held electronically by each party will be stored in a secure area with defined access controls (including passwords) and appropriate back-up functionality. The system must be auditable to identify access and modification. All devices storing the personal data will carry appropriate levels of encryption, including any mobile devices or media.

Appropriate controls must be in place to ensure that any individual no longer required to have access will promptly have such access removed.

Any paper records printed must be kept to a minimum and kept secure at all times whether in the office, home or during transit. Appropriate security methods must be applied when storing or disposing of paper records.

12. Who will handle the information – name and job title?

Refer to table for job titles in Rescue & Response Project Team.

The Rescue and Response project contact details:

Operations manager- [redacted]
[redacted]@brent.gov.uk [redacted]

[redacted]

Please see appendix B- Rescue and Response Organogram.

All signatories to this document, within this also specific resources allocation/co-location of officers for the project ie ~SPOCs and wider R&R team.

Once the Rescue & Response Project Team have received a referral from an organisation, that organisation will follow its own processes to manage and process information. When the project team share information with relevant organisations.

13. How long will the information be kept?

In accordance with the GDPR guidelines, ARTICLE 5(1)- it will not be retained longer than necessary in relation to the purpose for which such data is processed. Each party shall apply their own retention schedules.

14. How will the information be destroyed?

Redundant data is disposed of securely and using formal procedures and compliance with the standard guidelines

15. What are the procedures for dealing with a breach of the agreement – notifying and investigating breaches

The Brent form will be used and sent to the other effected data controller and sent within 24 hours to relevant effected parties

All signatories will maintain robust data breach detection, investigation and internal reporting procedures and follow the guidance of the Information Commissioner's Office (ICO).

If a signatory has a data breach (or suspects a data breach in another signatory organisation) which relates to the information being shared under this agreement, it will:

- inform the parties affected by the breach as soon as there is awareness of a breach and Brent Rescue and Response Project Team - immediately identifying any urgent remedial actions required that might affect other parties
- liaise with the other parties as appropriate to take steps to establish the likelihood and severity of the resulting risk to affected data subjects including the risk of physical, material or non-material damage to individuals such as loss of control over their personal data or limitation of their rights, discrimination, identity theft or fraud, financial loss, unauthorised reversal of pseudonymisation, damage to reputation, loss of confidentiality of personal data protected by professional secrecy or any other significant economic or social disadvantage to the natural person concerned.
- identify whether it is likely that there will be such a risk to data subject's rights and freedoms, and notify all affected Parties
- where the incident meets the criteria, notify the ICO (within 72 hours where feasible) and, where appropriate, inform those individuals affected without undue delay.

In all cases the signatory will keep full written records of any data breach, its investigation, the remedial steps taken and the reasons for such steps.

All parties affected by a data breach will share with other signatories a lessons learned analysis of the cause and effects of reportable data breaches and will share with all partners at the next R&R Strategic Governance Group.

It is noted that each party, as data controller, is individually liable for any penalty imposed on it by the ICO and for any loss or damage recovered against it by whatever means by any person in connection with a data breach. Each party is also responsible for the actions of any data processors that they engage with in relation to a breach.

16. What date will the information be shared? Initial date must be later that the date of the signatures below and should give an indication of subsequent dates for regular sharing.

During the 3-year duration of the project which is between 2018/2019 – 2020/2021. The project is scheduled to end in March 2021.

17. What are the names, roles and contact details of any members of staff who will make sure that the required information is shared at the appropriate time (day-to-day organisational points of contact)?

The responsibility is with all parties to this document. Each party also have provided specific resource allocation/co-location of officers for the project ie SPOCs and wider R&R team. Please see section 8 of ISP which provides further details of specific roles and responsibilities.

18. When will this agreement be reviewed and by whom (please state the governance arrangement for this sharing of information)?

October 2019

This agreement must be formally approved and signed by both parties before any information sharing takes place. All parties will ensure that the ISA and any associated documents are known and understood by all staff involved in the process.

Each Data Controller shall accept responsibility for its own acts and omissions. Nothing in this agreement shall limit liability for death or personal injury resulting from negligence or for fraud.

All Parties to this Agreement shall, from 25 May 2018, comply with its obligations under the General Data Protection Regulation (EU) 2016/679 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data (the "GDPR"). For the purpose of this, a reference in this Agreement to the DPA shall from 25 May 2018 be construed as being a reference to the GDPR and any defined terms given the meanings that are ascribed to them in the DPA shall have the meaning given to them in the GDPR. Any reference in this Contract to "sensitive personal data" shall from 25 May 2018 be construed as meaning "special categories of personal data" as referred to in the GDPR.

Originating organisation

Name of organisation: Brent Council

Name: [redacted]

Position: Head of Community Protection

Signature: [redacted]

Date: 26/10/2018

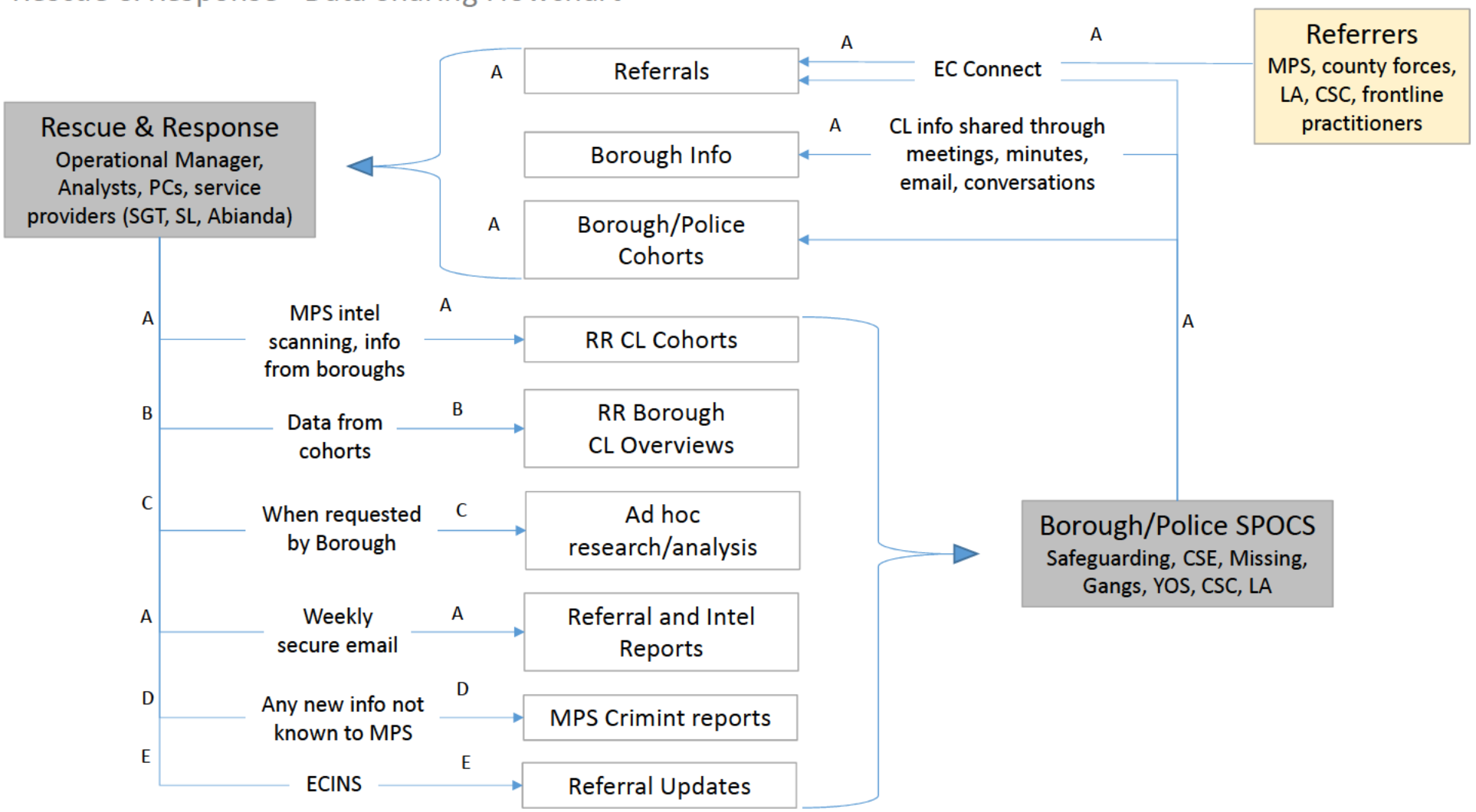
Partner organisation

Agency Name	Address	Contact Details	Authorised Signatory inc job title	Date
Barking and Dagenham Council				
Barnet Council				
Bexley Council				
Bromley Council				
Camden Council				
Croydon Council				
Ealing Council				
Enfield Council				
Greenwich Council				
Hackney Council				
Hammersmith & Fulham Council				
Haringey Council				
Harrow Council				
Havering Council				

Hillingdon Council				
Hounslow Council				
Islington Council				
Kensington & Chelsea Council				
Kingston upon Thames Council				
Lambeth Council				
Lewisham Council				
Merton Council				
Newham Council				
Redbridge Council				
Richmond upon Thames Council				
Southwark Council				
Sutton Council				
Tower Hamlets Council				
Waltham Forest Council				
Wandsworth Council				
Westminster Council				
St Giles Trust Council				

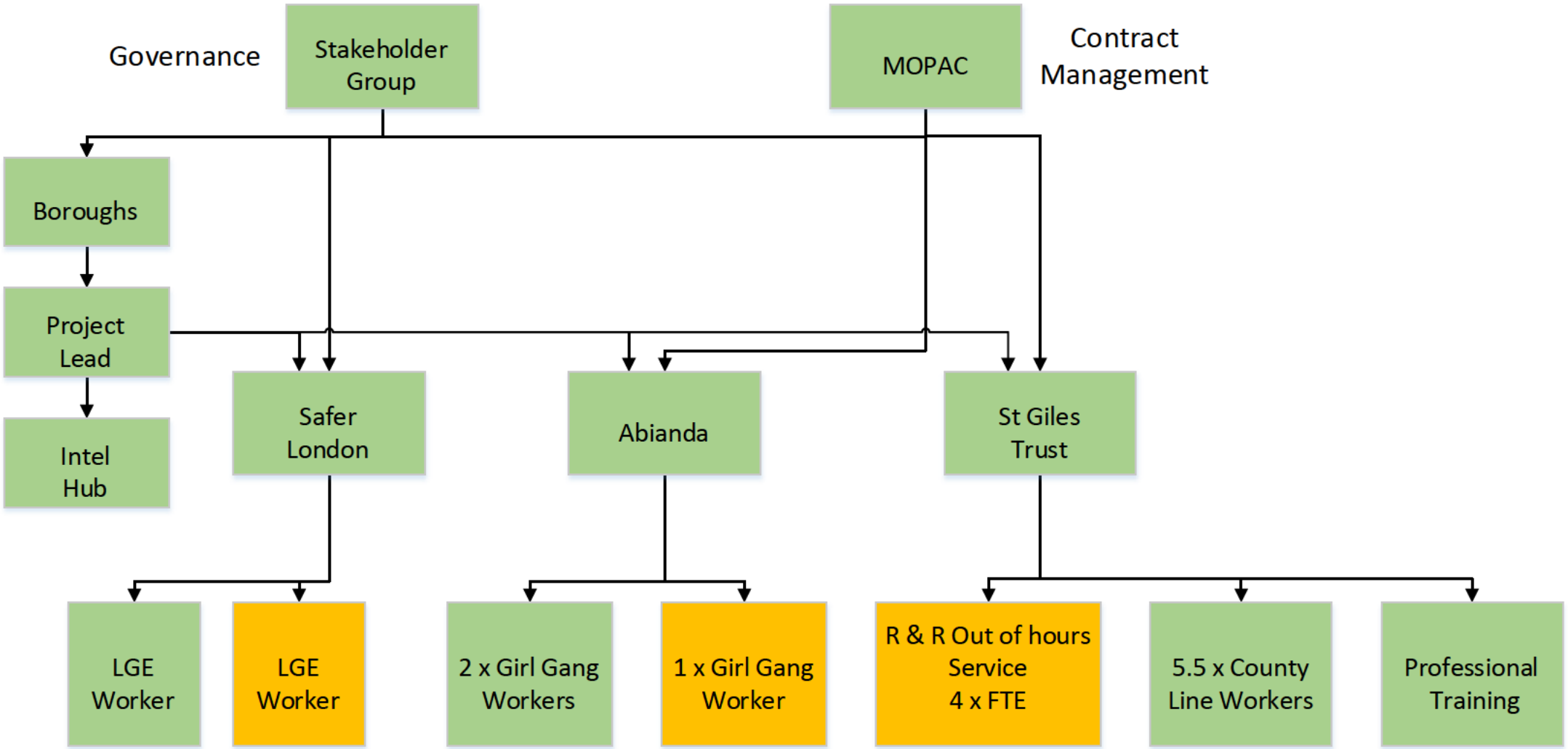
Abianda				
Safer London				
NPS				
CRC				

Rescue & Response - Data Sharing Flowchart



Label	Category of data	Description	Classification
A	Contact Data Summary personal data Criminal data – summary	Name, DOB address, service status background data – criminal record summary	Official-Sensitive
B	Non-personal data - Demographic data Cohorts - age	Locations of incidents/hotspots Location of county forces Relevant statistical data	Official
C	A plus Sensitive service data	Details of A and B and details of services engaged with partner	Official-Sensitive
D	A, plus sensitive service data not known to the police.	Comments and details of service intelligence (i.e. disclosure of safeguarding/concerns matters). This information would not normally be disclosed to the data subjects.	Official
E	Service details – referral updates – unstructured	Free form texts – assessments completed on the young people	Official - Sensitive

Rescue & Response Partnership Structure



Light Orange = EIYF Funded